

Without Prejudice
Draft: 6 August 2010

Undertaking to the Australian Competition and Consumer Commission

Given under section 87B of the *Trade Practices Act* by **National Australia Bank Limited**

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1 Person giving the Undertaking

- 1.1 This Undertaking is given to the Australian Competition and Consumer Commission (**ACCC**) by National Australia Bank Limited ABN 12 004 004 937 on behalf of itself and its Subsidiaries. For the avoidance of doubt, this includes NAB's Subsidiary National Wealth Management Holdings Limited ABN 73 093 329 983 (**NWMHL**).

2 Background

- 2.1 On 17 December 2009, NAB and AXA APH entered into a Terms Deed, under which NAB agreed to acquire 100% of the shares in AXA APH. The transaction involves NAB acquiring 100% of the issued shares in AXA APH, retaining the Australian and New Zealand businesses of AXA APH and divesting AXA APH's Asian businesses to AXA SA (the **Proposed Acquisition**).
- 2.2 The acquisition of the issued shares in AXA APH is to be implemented by way of a scheme of arrangement under Part 5.1 of the Corporations Act, under which NAB will acquire all the shares in AXA APH held by minority shareholders and a share sale deed, under which NAB will acquire all the shares in AXA APH held by AXA SA.
- 2.3 Both NAB and AXA APH provide a range of wealth management products and services, including the supply of retail investment platforms. NAB supplies retail investment platforms including MLC MasterKey, MasterKey Custom, Plum and Navigator. AXA APH supplies retail investment platforms including Summit, Generations, iAccess and North.
- 2.4 Both NAB and AXA APH also provide financial advisory and planning services through networks of aligned financial planners. NAB's distribution network of aligned financial planners includes NAB Financial Planning, MLC Financial Planning, Garvan Financial Planning, Godfrey Pembroke and Apogee Financial Planning. AXA APH's distribution network of aligned financial planners includes AXA Financial Planning, Charter Financial Planning, Jigsaw Support Services, Genesys Wealth Advisors, ipac Securities and Tynan Mackenzie. NAB and AXA APH also have relationships with non-aligned financial planners.
- 2.5 On 19 January 2010, the ACCC commenced its review of the Proposed Acquisition.
- 2.6 On 30 March 2010, AXA APH, AXA SA and NAB entered into a Framework Deed and AXA APH and NAB entered into a Merger Implementation Deed, which, together with a number of other agreements, govern the overall arrangements between the parties in respect of the Proposed Acquisition.
- 2.7 The ACCC conducted market inquiries and considered the information provided by the parties, industry participants and others. The ACCC's inquiries were aimed at assessing whether the Proposed Acquisition would have the effect or be likely to have the effect of substantially lessening competition in a market in contravention of section 50 of the Trade Practices Act 1974 (the **Act**).
- 2.8 On 19 April 2010, the ACCC announced its decision to oppose the Proposed Acquisition.
- 2.9 The ACCC considered that AXA APH is on the cusp of delivering an innovative full service retail investment platform (the North platform based on the Bluedoor Software as licensed to NMCS under the Existing Bluedoor Agreement) that will play an important role in the near future in driving competition and is likely to be versatile in responding to future competing platform offerings. The ACCC considered that platform functionality, including

innovation and quality of service, is the key driver of competition between retail investment platforms and having regard to the likely future competitive environment, functionality is likely to become an increasingly important basis of competition.

- 2.10 The ACCC considered that AXA APH's North platform is likely to closely compete with NAB's Navigator platform in the market for the supply of retail investment platforms for investors with complex investment needs. The ACCC considered that the Proposed Acquisition would remove a vigorous and effective competitor that would provide an effective competitive constraint on market participants, and in particular, strong competitive tension to NAB's Navigator platform in the form of platform functionality and innovation.
- 2.11 The ACCC concluded that given the high barriers to entry, new entrants are unlikely to emerge that would be successful in providing an effective competitive constraint to existing key players. The key barriers to entry are the initial sunk costs to establish a retail investment platform, scale and distribution. To be effective, new entrants must have sufficient scale to justify the initial and on-going investment and access to a sufficiently large network of financial planners.
- 2.12 The ACCC considered that the Proposed Acquisition would result in increased horizontal aggregation in the market for the supply of retail investment platforms for investors with complex needs. This will increase NAB's share of funds under management (FUM) on its platforms which, in turn, would diminish NAB's incentives to compete on innovation (in particular, platform functionality and quality of service) and price.
- 2.13 The ACCC formed the view that the Proposed Acquisition would be likely to have the effect of substantially lessening, preventing or hindering competition in the Australian market for the supply of retail investment platforms for investors with complex investment needs in contravention of section 50 of the Act.
- 2.14 NAB does not agree that the Proposed Acquisition would be likely to have the effect of substantially lessening competition in any market, but in order to address the ACCC's competition concerns, NAB has, without admission, provided this undertaking pursuant to section 87B of the Act to the ACCC dated [XXXX] (this Undertaking).
- 2.15 In support of this Undertaking, and to address the ACCC's competition concerns, AXA APH has provided an undertaking pursuant to section 87B of the Act to the ACCC dated [XXXX] (**AXA Undertaking**). The terms on which AXA APH has agreed to divest the Divestiture Business are described in the AXA Undertaking.
- 2.16 Upon divestment of the Divestiture Business to the Approved Purchaser, NAB and AXA APH have agreed as follows:
- (a) **Platform Administration Services:** The existing North Products will be retained and continue to be issued by the current AXA APH product issuers. NMMT (for itself and on behalf of the other relevant AXA APH product issuers) has entered into a Platform Administration Services Agreement with the Approved Purchaser to acquire platform administration services for these products through the North platform business operated by the Approved Purchaser using the Bluedoor Software.
 - (b) **Purchaser Product Capability:** Initially, the existing AXA APH product issuers will continue to be the sole issuers of products that are administered by the Divestiture Business. In order to allow the Approved Purchaser to support its own products through the Divestiture Business, NAB will provide funding to the Approved Purchaser for the development of enhancements to the Bluedoor Software that will provide the capability to administer certain products of the Approved Purchaser.
 - (c) **Platform Enhancements:** The 2010 development plans for the Bluedoor Software as contemplated by AXA APH, include the planned addition to that software of

functionality for direct equities capability, model portfolios, dollar cost averaging and term deposits. The 2010 development plans also included functionality for margin lending and enhanced online/straight through processing, which have already been completed by AXA APH. To the extent the 2010 development plans are not completed at the time the Divestiture Business is transferred to the Approved Purchaser, NAB will provide funding to the Approved Purchaser to complete this work with respect to the Bluedoor Software.

- (d) **North Products Exclusivity Arrangement:** NAB agrees to provide exclusivity rights to the Approved Purchaser in relation to the provision of platform administration services for the existing North Products. In addition, NAB agrees not to use the intellectual property rights owned by AXA APH relating to the North Guarantees to replicate, or otherwise offer, the same or substantively similar products as the North Guarantees, to the extent provided in this Undertaking. This exclusivity arrangement will operate for the Platform Administration Term.
- (e) **Transitional Services:** As at Divestiture, the Approved Purchaser will not have developed the IT systems to enable it to host the Bluedoor Software. AXA APH (before the Scheme Implementation Date), NWMHL (after the Scheme Implementation Date) or their respective Related Bodies Corporate, will provide to the Approved Purchaser services to support a transition from the use of the IT systems used to support the Divestiture Business as at the Divestiture Date to the Approved Purchaser's own IT systems (**IT Transition**) and to enable the delivery of the Platform Administration Services pending the completion of IT Transition, including continuing to host the Bluedoor Software and agree to sublease to the Approved Purchaser secure premises to accommodate the Personnel who accept an offer of employment with the Approved Purchaser.

2.17 The objective of this Undertaking and the AXA Undertaking is to address the ACCC's competition concerns which would otherwise arise as a consequence of the Proposed Acquisition.

2.18 This Undertaking and the AXA Undertaking aim to maintain competition through:

- (a) the strengthening of the Approved Purchaser as a viable, effective, stand-alone, independent and long term competitor for the supply of retail investment platforms for investors with complex investment needs;
- (b) ensuring that the Approved Purchaser has the necessary assets, rights and obligations to allow it to operate as a viable going concern and to compete effectively in the market for the supply of retail investment platforms for investors with complex investment needs; and
- (c) enabling the Approved Purchaser to provide vigorous and effective competition through the Divestiture Business, in particular on the basis of functionality, in the supply of retail investment platforms for investors with complex investment needs.

3 Conditions precedent to the ACCC's acceptance of this Undertaking

Approved Purchaser [SUBJECT TO MARKET CONSULTATION AND ACCC APPROVAL]

3.1 The ACCC has approved, as a condition precedent to accepting this Undertaking, [IOOF] as the Approved Purchaser of the Divestiture Business on the basis of the following:

- (a) the Approved Purchaser will complete the transaction contemplated by the Business Sale Agreement dated [XXXX], pursuant to which the Approved Purchaser will acquire from AXA APH the Divestiture Business;
- (b) the Approved Purchaser is and will remain independent of and has no direct or indirect interest in AXA APH and NAB, except for holdings held on behalf of, or for the benefit of, a third party, including external investors, unitholders, policyholders or beneficiaries of funds (including superannuation, life insurance and other insurance funds), managed investment schemes and trusts where the entity holding the share is obliged to act in the interests of that third party;
- (c) the Approved Purchaser is of good financial standing and has an intention to maintain and operate the Divestiture Business as a going concern;
- (d) the Approved Purchaser is able to conduct the Divestiture Business effectively; and
- (e) the sale of the Divestiture Business to the Approved Purchaser will address any competition concerns of the ACCC, including the likely long term viability and competitiveness of the Divestiture Business under the ownership of the Approved Purchaser.

3.2 The ACCC may revoke [IOOF's] status as the Approved Purchaser of the Divestiture Business and its acceptance of this Undertaking if the ACCC becomes aware that the information provided to it was incorrect, inaccurate or misleading.

Agreements

3.3 Subject to clause 3.4, it is also a condition precedent of the ACCC's acceptance of this Undertaking that the conditions precedent for each of the agreements listed in subclauses 3.3(a) to (h) below have been satisfied and not waived, and that each agreement has been duly executed and a copy of each executed agreement has been provided to the ACCC:

- (a) the Business Sale Agreement between the Approved Purchaser, AXA APH and NWMHL dated [XXXX];
- (b) the Platform Administration Services Agreement between the Approved Purchaser, NMMT Limited and NWMHL dated [XXXX];
- (c) the Transitional Services Agreement between the Approved Purchaser, AXA APH and NWMHL dated [XXXX];
- (d) the Sale Escrow Deed entered into between NWMHL, AXA APH, the Approved Purchaser and the Approved Sale Escrow Agent dated [XXXX];
- (e) the New Bluedoor Agreement between the Approved Purchaser and DST dated [XXXX];
- (f) the Software Escrow Agreement between the Approved Purchaser, DST and the relevant software escrow service provider dated [XXXX];
- (g) the Global Terms Sheet between DST, NWMHL, AXA APH, NMCS and the Approved Purchaser, dated [XXXX]; and
- (h) the Transfer Deed between NMCS, DST and the Approved Purchaser dated [XXXX].

- 3.4 Notwithstanding the obligations on NAB in clause 3.3 for all conditions precedent to be satisfied and not waived prior to the ACCC's acceptance of this Undertaking, it is acknowledged that:
- (a) two conditions precedent will not be satisfied prior to the ACCC's acceptance of this Undertaking:
 - (i) the condition that the Scheme has been approved by the court whereby AXA APH receives an office copy of the Scheme orders (clause 2.1(d) of the Business Sale Agreement); and
 - (ii) the condition that the ACCC has confirmed in writing that it has no objection to the terms of this Undertaking and to the Approved Purchaser (clause 2.1(e) of the Business Sale Agreement);
 - (b) the condition precedent regarding the ATO Ruling (clause 2.1(c) of the Business Sale Agreement) may be waived by NAB prior to the ACCC's acceptance of this Undertaking.
- 3.5 NAB unconditionally represents and warrants to the ACCC that as at the date this Undertaking is executed and accepted by the ACCC:
- (a) each of the agreements referred to in clause 3.3 above constitutes a legal, valid and binding obligation of each party thereto and is enforceable in accordance with its terms;
 - (b) subject to clause 3.4, all conditions precedent to each party performing their respective obligations under each of the agreements referred to in clause 3.3 above have been satisfied and not waived.
- 3.6 Subject to clause 3.4, NAB must provide the ACCC with all necessary information and documentation to enable the ACCC to decide whether the conditions precedent to each of the agreements referred to in clause 3.3 above have been satisfied and not waived.
- 3.7 The ACCC may revoke its decision that the conditions precedent to each of the agreements listed in clause 3.3 above have been satisfied (subject to clause 3.4), if the ACCC becomes aware that the information provided to it was incorrect, inaccurate or misleading, including without limitation the representation of NAB in clause 3.5 above.

4 Commencement and termination of Undertaking and additional obligations on NAB prior to Scheme Effective Date

Commencement

- 4.1 This Undertaking comes into effect when:
- (a) the Undertaking is executed by NAB; and
 - (b) the Undertaking so executed is accepted by the ACCC.

Additional obligations on NAB prior to the Scheme Effective Date

- 4.2 8 Business Days prior to the date that is scheduled as the Scheme Effective Date in the Explanatory Memorandum, NAB must deliver to the ACCC unconditional written confirmation that as at that date:

- (a) the representations and warranties made by NAB to the ACCC pursuant to clauses 3.5, 5.6 and 4 are true and correct;
- (b) NAB has and continues to duly and punctually comply with its obligations under the agreements listed in clause 3.3;
- (c) No party has notified NAB that NAB is in breach of any agreement listed in clause 3.3;
- (d) NAB is not aware of any circumstance that is likely to cause it or any other party to any agreement referred to in clause 3.3 to be in breach of any agreement listed in clause 3.3;
- (e) NAB is not aware of any material change to any agreement listed in clause 3.3 (except as otherwise notified to the ACCC);
- (f) the Requirements Documentation is consistent in all material respects and no material deviation has occurred from the Platform Enhancements SOW, the Purchaser Product Capability SOW and the scope of the requirements described in Confidential Schedule 11 and Confidential Schedule 12 respectively;
- (g) NAB has appointed an Approved Independent Project Manager in accordance with clause 9 of this Undertaking and that such manager has not resigned or been terminated;
- (h) NAB has appointed an Approved Independent Auditor in accordance with clause 11 and that such manager has not resigned or been terminated;
- (i) NAB is not in breach of this Undertaking and that it does not anticipate that it is likely that it will breach the Undertaking.

4.3 NAB undertakes that should it fail to provide the unconditional written confirmation to the ACCC required by clause 4.2 it must immediately:

- (a) take all action within its power to delay or postpone any further action required of it or AXA APH to obtain an order pursuant to section 411(4)(b) of the Corporations Act unless and until the conditions in clause 4.2 are unconditionally satisfied or waived by the ACCC in its sole discretion; and
- (b) forward to AXA APH a notice for the purposes of clause 5.13 of the AXA Undertaking, with a copy to the ACCC, advising that NAB has failed to provide the unconditional written confirmation to the ACCC required by clause 4.2 of this Undertaking.

Termination

4.4 Unless clause 4.5 applies, this Undertaking terminates on the later of:

- (a) the expiration of the Platform Administration Term; or
- (b) the Enhancements Completion Date; and
- (c) the date on which the ACCC confirms in writing that this Undertaking has terminated,

4.5 This Undertaking will also terminate if:

- (a) the ACCC consents in writing to the withdrawal of this Undertaking in accordance with section 87B of the Act; or
- (b) the Framework Deed is lawfully terminated in accordance with its terms prior to the completion of the sale of the Divestiture Business and NAB advises the ACCC in writing that it no longer proposes to acquire the Australian and New Zealand businesses of AXA APH.

5 Sale of the Divestiture Business

Divestiture Business

5.1 The Divestiture Business consists of a platform administration business carried on by AXA APH using the Bluedoor Software to facilitate the administration of the North Products.

5.2 The sale and transfer of the Divestiture Business required by this Undertaking and the AXA Undertaking specifically consists of:

- (a) the assignment of the goodwill in the Divestiture Business to the Approved Purchaser;
- (b) an assignment of the Business Manual IP (as described in Confidential Schedule 7) to the Approved Purchaser;
- (c) an assignment of the North Trademarks (as described in Confidential Schedule 9) to the Approved Purchaser;
- (d) a transfer of rights and obligations under existing Statements of Work between NMCS and DST relating to the Platform Enhancements (as described in Confidential Schedule 11) and the Purchaser Product Capability (as described in Confidential Schedule 12) to the Approved Purchaser;
- (e) a transfer of all Business Records to the Approved Purchaser, other than those business manuals in which intellectual property rights are being licensed (as described in Confidential Schedule 8), except where they are required by law to be kept by AXA APH, in which case AXA APH will provide, or procure the provision of, a copy of those records to the Approved Purchaser on the Divestiture Date;
- (f) the Personnel to be made an offer of employment by the Approved Purchaser;
- (g) the grant to the Approved Purchaser of a non-exclusive, perpetual, irrevocable and royalty-free licence (as described in Confidential Schedule 8) with the right to sub-license, to use, reproduce, develop and otherwise exploit the Licensed IP; and
- (h) at the option of the Approved Purchaser, the provision of certain other assets and services under the Transitional Services Agreement that are required for the Approved Purchaser to conduct the Divestiture Business from the Divestiture Date for a transitional period.

Sale of the Divestiture Business

5.3 NAB must do everything in its power to ensure that the completion of the sale of the Divestiture Business by AXA APH to the Approved Purchaser occurs before the Scheme becomes Effective.

- 5.4 The contents of this clause 5.4 are set out in Confidential Schedule 3.
- 5.5 The contents of this clause 5.5 are set out in Confidential Schedule 4.
- 5.6 NAB represents and warrants that:
- (a) at the Divestiture Date, the Divestiture Business comprises all of the material assets, rights and Personnel required by the Approved Purchaser to perform the Platform Administration Services, save for the exclusions specified at clause 1.1 of Schedule 21;
 - (b) at the Divestiture Date the Approved Purchaser will have sufficient human and technical resources to perform the Platform Administration Services, save for the exclusions specified at clause 1.2 of Schedule 21.

6 Services to be acquired from or provided to the Approved Purchaser

- 6.1 From the Divestiture Date, NAB, AXA APH or their respective Related Bodies Corporate will acquire Platform Administration Services (as described in clause 1 of Schedule 1) from the Approved Purchaser in relation to the administration of the North Products using the Bluedoor Software for the Platform Administration Term.
- 6.2 At the option of the Approved Purchaser, AXA APH (prior to the Scheme Implementation Date) and NAB (after the Scheme Implementation Date) will provide or procure the provision to the Approved Purchaser of Transitional Services (as described in clause 2 of Schedule 1) in relation to the operation of the Divestiture Business.
- 6.3 NAB, AXA APH or their respective Related Bodies Corporate must not terminate the Platform Administration Services Agreement or the Transitional Services Agreement without the ACCC's prior written consent.
- 6.4 A request for the ACCC's written consent to terminate the Platform Administration Services Agreement or the Transitional Services Agreement may include any information that is relevant to that request including, without limitation, any of the matters listed in clause 1 of Schedule 20.
- 6.5 NAB represents and warrants that the Transitional Services are all the services required by the Approved Purchaser from the Service Provider to conduct the Divestiture Business from the Divestiture Date in the same or similar manner as conducted by AXA APH in the ordinary course of business during the 12 month period prior to the Divestiture Date, save the exclusions specified at clauses 1.1(a) and 1.1(b) of Schedule 21.
- 6.6 NAB after the Scheme Implementation Date will provide or procure the provision to the Approved Purchaser of Transitional Services with the degree of professional skill, care, competence and diligence reasonably expected of a provider of the same or similar services.

7 North Products exclusivity arrangement

- 7.1 For the duration of the Platform Administration Term, NAB must procure that NAB or its Related Bodies Corporate must:

- (a) not acquire or provide platform administration services for the North Products other than through the Divestiture Business as operated by the Approved Purchaser;
- (b) not use the intellectual property rights owned by AXA APH as at the Divestiture Date relating to the North Guarantees to replicate, or otherwise offer, the same or substantively similar products to the North Guarantees. For the avoidance of doubt, nothing in this clause 7.1(b) will prevent NAB from using independently generated intellectual property or public information to develop new products or from supplying or further developing its existing products as set out in Confidential Schedule 18;
- (c) continue to list the North Products on the approved product lists of AXA APH Financial Advisers, unless and until:
 - (i) the North Products cease to meet the standard criteria adopted for product listings on the approved product lists of AXA APH Financial Advisers as determined by the independent directors on the applicable product committee;
 - (ii) the ACCC is provided with written reasons why the North Products no longer meet the applicable criteria. The content of these written reasons may include, without limitation, any of the matters listed in clause 2 of Schedule 20; and
 - (iii) the ACCC has provided written confirmation to NAB that the North Products may be removed from the approved product lists of one or more AXA APH Financial Advisers.

8 Platform Enhancements and Purchaser Product Capability

Platform Enhancements and Purchaser Product Capability

8.1 NAB must:

- (a) procure or take all reasonable steps to ensure that the Platform Enhancements and the Purchaser Product Capability outlined in Confidential Schedules 11 and 12, respectively, are delivered, in all material respects, by the Platform Enhancements Delivery Date and the Purchaser Product Delivery Date as applicable;
- (b) not interfere with, delay, or otherwise hinder, DST or the Approved Purchaser in relation to the design, development, implementation or completion of the Platform Enhancements or the Purchaser Product Capability;
- (c) promptly pay to the Approved Purchaser such amounts in relation to Platform Enhancements and Purchaser Product Capability for which the Approved Purchaser is entitled to be reimbursed by NAB;
- (d) require the Approved Purchaser to use all reasonable endeavours to enforce its rights and cooperate with DST so as to procure that the Purchaser Product Capability is completed by the Purchaser Product Delivery Date and Platform Enhancements are completed by the Platform Enhancements Delivery Date; and
- (e) require the Approved Purchaser to cooperate with and provide information to the Approved Independent Project Manager that the Approved Independent Project

Manager considers necessary for the performance of his functions pursuant to clause 9 of this Undertaking and clause 4 of Confidential Schedule 5.

8.2 NAB must:

- (a) upon the completion of the Purchaser Product Capability and the Platform Enhancements (as determined in accordance with clause 9.6 of this Undertaking) pay a success fee to DST calculated in accordance with clause 1 of Confidential Schedule 5. NAB must notify in writing the ACCC and the Approved Independent Auditor when NAB has made this payment;
- (b) pay monthly service fees as set out in clause 2 of Confidential Schedule 5 based on the aggregate FUA of the Wealth Fund and the North IDPS to the Approved Purchaser for the duration of the Platform Administration Term;
- (c) pay additional monthly service fees as set out in clause 2 of Confidential Schedule 5 based on the aggregate FUA of the Wealth Fund and the North IDPS to the Approved Purchaser from the Divestiture Date until the earlier of the end of the Platform Administration Term or the end of the first 12 months after the Purchaser Product Completion Date; and
- (d) pay DST amounts as set out in clause 2 of Confidential Schedule 5 as a contribution towards DST's resourcing and related costs until the Purchaser Product Capability and the Platform Enhancements have been completed in accordance with clause 9.6.

Failure to deliver Platform Enhancements and Purchaser Product Capability by respective delivery dates

8.3 The contents of this clause 8.3 are set out in clauses 3 and 4 of Confidential Schedule 5.

9 Independent Project Manager

Obligation to appoint an Approved Independent Project Manager

9.1 NAB must appoint and maintain an Approved Independent Project Manager to perform the functions set out in this clause 9 and in clause 4 of Confidential Schedule 5.

Proposed Independent Project Manager

9.2 NAB must, at least 30 Business Days prior to the Divestiture Date, identify a prospective independent project manager (**Proposed Independent Project Manager**) and provide the ACCC with written notice of the Proposed Independent Project Manager together with such information and documents as the ACCC requires to assess whether to object to the appointment of the Proposed Independent Project Manager, including a copy of the proposed terms of appointment.

9.3 The Proposed Independent Project Manager must be a person who has the qualifications and experience necessary to monitor and manage the functional design, development and implementation of the Platform Enhancements and Purchaser Product Capability, as applicable, and who is independent of NAB, DST and the Approved Purchaser and is not conflicted to act as an Approved Independent Project Manager having regard to information available to the ACCC.

9.4 The criteria by which the independence of the Proposed Independent Project Manager will be determined include whether the person is a:

- (a) current employee or officer of NAB, DST or the Approved Purchaser;
- (b) a person who has been an employee or officer of NAB, DST or the Approved Purchaser in the past 3 years;
- (c) a person who, in the opinion of the ACCC, holds a material interest in NAB, DST or the Approved Purchaser;
- (d) a professional adviser of NAB, DST or the Approved Purchaser whether current or in the past 3 years; or
- (e) a person who has a material contractual relationship, or is an employee, partner or contractor of a firm or company that has a material contractual relationship with NAB, DST or the Approved Purchaser but for the terms of any agreement to act as an independent project manager pursuant to the terms of this Undertaking or terms agreed with DST and notified to the ACCC.

Appointment of Approved Independent Project Manager

9.5 If:

- (a) within 10 Business Days of receipt by the ACCC of the written notice referred to in clause 9.2; or
- (b) such further period as is required by the ACCC and notified to NAB in writing prior to the expiration of the 5 Business Day period;

the ACCC informs NAB that it:

- (c) does not object to the Proposed Independent Project Manager, NAB will:
 - (i) appoint the Proposed Independent Project Manager as the Approved Independent Project Manager as soon as practicable and by no later than 10 Business Days after receiving the ACCC's decision under this clause 9.5(c), on terms approved by the ACCC and consistent with the performance by the Approved Independent Project Manager of his or her functions under this Undertaking; and
 - (ii) forward to the ACCC a copy of the executed terms of appointment;

or

- (d) does object to the Proposed Independent Project Manager, NAB will:
 - (i) appoint a person identified by the ACCC at its absolute discretion as the Approved Independent Project Manager of the Platform Enhancements and/or Purchaser Product Capability and by no later than the Divestiture Date, on terms approved by the ACCC and consistent with the performance by the Approved Independent Project Manager of its functions under this Undertaking; and
 - (ii) forward to the ACCC a copy of the executed terms of appointment.

Obligations relating to the Approved Independent Project Manager

9.6 NAB must procure that the terms of appointment of the Approved Independent Project Manager include obligations on the Approved Independent Project Manager to:

- (a) to determine whether the Purchaser Product Capability (as described in Confidential Schedule 12) or the Platform Enhancements (as described in Confidential Schedule 11) (as applicable) have been completed in accordance with and have satisfied the acceptance criteria described in, Confidential Schedule 11 or Confidential Schedule 12 respectively (but only in the event that the Approved Purchaser and DST are unable to agree as to whether those requirements have been met on or before 15 Business Days after the Purchaser Product Delivery Date or the Platform Enhancements Delivery Date as applicable, or otherwise agree to refer that issue to the Approved Independent Project Manager) and notify the ACCC and the Approved Independent Auditor in writing of his or her determination, except where paragraph (b) applies;
- (b) notify the ACCC and the Approved Independent Auditor promptly in writing in the event that AXA APH and DST agree, prior to the Divestiture Date, that the Platform Enhancements have been completed in accordance with and satisfy the acceptance criteria described in, Confidential Schedule 11, or if the Approved Purchaser and DST have agreed on or before 15 Business Days after the Purchaser Product Delivery Date or the Platform Enhancements Delivery Date (as applicable) that the Purchaser Product Capability or the Platform Enhancements, respectively have been completed in accordance with and satisfy the acceptance criteria described in Confidential Schedule 12 or Confidential Schedule 11 respectively;
- (c) monitor and resolve disputes relating to the functional design, development and implementation of the Platform Enhancements and/or Purchaser Product Capability (as applicable);
- (d) not use any confidential information gained through the performance of its functions as Approved Independent Project Manager other than for performing its functions as Approved Independent Project Manager;
- (e) in the event of failure to deliver the Platform Enhancements or Purchaser Product Capability by the Platform Enhancements Delivery Date or the Purchaser Product Delivery Date, respectively, provide a written report each month to the ACCC and the Approved Independent Auditor in relation to the delivery of the Platform Enhancements or Purchaser Product Capability (as appropriate) until the Platform Enhancements or Purchaser Product Capability, as applicable, are delivered to the Approved Purchaser;
- (f) provide information requested by the ACCC relating to the performance of the Approved Independent Project Manager's functions directly to the ACCC;
- (g) report or otherwise inform the ACCC directly of any issues that arise in the performance of its functions as Approved Independent Project Manager;
- (h) follow any direction given to him or her by the ACCC in relation to the performance of his or her functions as Approved Independent Project Manager under this Undertaking;
- (i) in the event of failure to deliver the Platform Enhancements by the Platform Enhancements Delivery Date or the Purchaser Product Capability by the Purchaser Product Capability Delivery Date, as appropriate, perform the additional functions set out in clause 4 of Confidential Schedule 5; and
- (j) enter into a confidentiality agreement with DST requiring the Approved Independent Project Manager to not disclose (except to the ACCC as necessary for the performance of his or her functions under this Undertaking) or use (except as necessary for the performance of those functions) any confidential material of DST (including code and technical documentation relating to the Bluedoor

Software) which comes to the knowledge of the Approved Independent Project Manager.

- 9.7 NAB undertakes to fund and indemnify the Approved Independent Project Manager for any expenses, loss, claim or damage arising directly or indirectly from the performance by the Approved Independent Project Manager of his or her functions as the Approved Independent Project Manager pursuant to this Undertaking except where such expenses, loss claim or damage arises out of the gross negligence, fraud, misconduct, breach of duty or breach of contract by the Approved Independent Project Manager.

Resignation or termination of an Approved Independent Project Manager

- 9.8 In the event that an Approved Independent Project Manager resigns or is otherwise unable to continue as an Approved Independent Project Manager, NAB must:
- (a) immediately notify the ACCC; and
 - (b) within 5 Business Days after the Approved Independent Project Manager resigns or ceases to act as the Approved Independent Project Manager, or such further period as is required by the ACCC and notified to NAB, nominate an alternative Proposed Independent Project Manager in accordance with the procedure for appointment of the Approved Independent Project Manager set out in clauses 9.2 and 9.5, on terms approved by the ACCC and consistent with the performance by the Approved Independent Project Manager of its functions under clause 9.6 of this Undertaking and clause 4 of Confidential Schedule 5.
- 9.9 The ACCC may approve any proposal by, or alternatively may direct, NAB to terminate an Approved Independent Project Manager if in the ACCC's view the Approved Independent Project Manager acts inconsistently with the provisions of this Undertaking.
- 9.10 If either clause 9.8 or 9.9 applies:
- (a) the ACCC may nominate an alternative Approved Independent Project Manager;
 - (b) NAB must, within 5 Business Days of the ACCC nominating an alternative Approved Independent Project Manager:
 - (i) appoint an Approved Independent Project Manager nominated by the ACCC on terms approved by the ACCC and consistent with the performance by the Approved Independent Project Manager of his or her functions under this Undertaking; and
 - (ii) forward to the ACCC a copy of the executed terms of appointment.

10 Copies of agreements to be provided to ACCC

Provision of agreements to ACCC

- 10.1 As provided in clause 3.3 of this Undertaking, it is a condition precedent to the ACCC's acceptance of this Undertaking that NAB has provided the ACCC with a copy of each of the following executed agreements:
- (a) the executed Business Sale Agreement between the Approved Purchaser, AXA APH and NWMHL dated [XXXX];

- (b) the executed Platform Administration Services Agreement between the Approved Purchaser, NMMT Limited and NWMHL dated [XXXX];
- (c) the executed Transitional Services Agreement between the Approved Purchaser, AXA APH and NWMHL dated [XXXX];
- (d) the executed Sale Escrow Deed entered into between NWMHL, AXA APH, the Approved Purchaser, and the Approved Sale Escrow Agent dated [XXXX];
- (e) the executed New Bluedoor Agreement between the Approved Purchaser and DST dated [XXXX];
- (f) the executed Global Terms Sheet between DST, NWMHL, AXA APH, NMCS and the Approved Purchaser;
- (g) the executed Transfer Deed between NMCS, DST and the Approved Purchaser;
- (h) the executed Software Escrow Agreement between the Approved Purchaser, DST and the relevant software escrow provider dated [XXXX];
- (i) any executed terms agreed between DST and Approved Purchaser or DST, NMCS, NWMHL, AXA APH and the Approved Purchaser relating to the divestiture of the Divestiture Business, Purchaser Product Capability or Platform Enhancements or amendment or restatement thereof;
- (j) the Completion Escrow Documents; and
- (k) any other agreement between the Approved Purchaser and NAB relevant to the operations of the Divestiture Business and/or the independence of the Approved Purchaser from NAB.

11 Monitoring and reporting

Obligation to appoint an Approved Independent Auditor

- 11.1 NAB must appoint and maintain an Approved Independent Auditor to perform the functions set out in this clause 11.

Proposed Independent Auditor

- 11.2 At least 30 Business Days before the anticipated Divestiture Date, NAB must identify a prospective independent auditor (**Proposed Independent Auditor**) and provide the ACCC with written notice of the identity of the Proposed Independent Auditor, together with such information and documents as the ACCC requires to assess whether to object to the appointment of the Proposed Independent Auditor, including a copy of the proposed terms of appointment.
- 11.3 The Proposed Independent Auditor must be a person who has the qualifications and experience necessary to carry out the functions of the Approved Independent Auditor and is independent of NAB and AXA APH. The criteria by which the independence of the Proposed Independent Auditor will be determined include whether the person is:
- (a) a current employee or officer of NAB or AXA APH;
 - (b) a person who has been an employee or officer of NAB or AXA APH in the past three years;

- (c) a person who, in the opinion of the ACCC, holds a material interest in NAB or AXA APH;
- (d) a professional adviser of NAB or AXA APH, whether current or in the past three years; or
- (e) a person who has a material contractual relationship, or is an employee, partner or contractor of a firm or company that has a material contractual relationship with NAB or AXA APH, but for the terms of any Approved Independent Auditor agreement.

Appointment of Approved Independent Auditor

11.4 If:

- (a) within 10 Business Days after receipt by the ACCC of the written notice referred to in clause 11.2; or
- (b) such further period as is required by the ACCC and notified to NAB in writing prior to the expiration of the 10 Business Days period,

the ACCC informs NAB that it:

- (c) does not object to the Proposed Independent Auditor, NAB will:
 - (i) appoint the Proposed Independent Auditor as the Approved Independent Auditor as soon as practicable, on terms approved by the ACCC and consistent with the performance by the Approved Independent Auditor of his or her functions under this Undertaking; and
 - (ii) forward to the ACCC a copy of the executed terms of appointment; or
- (d) does object to the Proposed Independent Auditor, NAB will:
 - (i) appoint a person identified by the ACCC at its absolute discretion as the Approved Independent Auditor on terms approved by the ACCC and consistent with the performance of the Approved Independent Auditor of its functions under this Undertaking; and
 - (ii) forward to the ACCC a copy of the executed terms of appointment.

Obligations relating to the Approved Independent Auditor

11.5 NAB must procure that the terms of appointment of the Approved Independent Auditor include obligations on the Approved Independent Auditor to:

- (a) continue to satisfy the independence criteria in clause 11.3 for the period of his or her appointment and for a period of 12 months after the cessation of his or her role as the Approved Independent Auditor;
- (b) draft any recommendations pursuant to clause 11.8(e) in a manner that is clear and capable of immediate implementation by NAB without further clarification;
- (c) not disclose to NAB the outcome of his or her monitoring and auditing or his or her recommendations other than through the Auditor's Report, pursuant to clause 11.8 unless the ACCC consents in writing to such disclosure;

- (d) provide any information or documents requested by the ACCC about NAB's compliance with this Undertaking directly to the ACCC;
- (e) report or otherwise inform the ACCC directly of any issues that arise in the performance of his or her functions as Approved Independent Auditor or in relation to any matter that may arise in connection with this Undertaking;
- (f) prepare the compliance audit contemplated by clauses 11.7 and 11.8 of this Undertaking;
- (g) review and report to the ACCC regarding any changes made to the Platform Enhancements (as described in Confidential Schedule 11) or the Purchaser Product Capability (as described in Confidential Schedule 12) and make any recommendation considered appropriate; and
- (h) follow any direction given to him or her by the ACCC in relation to the performance of his or her functions as Approved Independent Auditor under this Undertaking.

11.6 Without limiting the obligations in this Undertaking, NAB must:

- (a) provide a copy of the executed terms of appointment for the Approved Independent Auditor to the ACCC within 1 Business Day after its execution;
- (b) comply with and enforce the terms of appointment for the Approved Independent Auditor;
- (c) maintain and fund the Approved Independent Auditor to carry out his or her functions;
- (d) indemnify the Approved Independent Auditor for any expenses, loss, claim or damage arising directly or indirectly from the performance by the Approved Independent Auditor of his or her functions as the Approved Independent Auditor except where such expenses, loss, claim or damage arises out of the gross negligence, fraud, misconduct, breach of duty or breach of contract by the Approved Independent Auditor;
- (e) not interfere with, or otherwise hinder, the Approved Independent Auditor's ability to carry out his or her functions as the Approved Independent Auditor;
- (f) provide and pay for any external expertise, assistance or advice required by the Approved Independent Auditor to perform his or her functions as the Approved Independent Auditor;
- (g) provide to the Approved Independent Auditor any information or documents requested by the Approved Independent Auditor that he or she considers necessary for carrying out his or her functions as the Approved Independent Auditor or for reporting to or otherwise advising the ACCC, except where NAB or any of its Related Bodies Corporate has a claim of legal professional privilege over the requested information or documents;
- (h) immediately notify the Approved Independent Auditor and the ACCC in writing in the event that:
 - (i) a relevant breach or event giving rise to a potential termination right as described in clause 6 of the Platform Administration Services Agreement occurs;

- (ii) a written notice is issued by NMMT in accordance with clause 6(d)(viii) of the Platform Administration Services Agreement;
 - (iii) a “material default” as described in clause 7 of the Platform Administration Services Agreement occurs and a written notice is issued by NMMT in accordance with clause 7(a)(ii) of the Platform Administration Services Agreement;
- (i) not request any information relating to the audit from the Approved Independent Auditor without such a request having been approved by the ACCC;
 - (j) direct its personnel, including directors, contractors, managers, officers, employees and agents, to act in accordance with this clause 11;
 - (k) from the Divestiture Date, ensure that all relevant personnel and the Approved Purchaser are aware of the Approved Independent Auditor and the obligations in this clause 11; and
 - (l) not appoint the Approved Independent Auditor, or have any agreements, understandings or arrangements with the Approved Independent Auditor, to utilise the Approved Independent Auditor’s services for anything other than compliance with this Undertaking for the term of this Undertaking until 12 months after the cessation of the role of the Approved Independent Auditor.

Compliance Audit

- 11.7 NAB will procure that the Approved Independent Auditor prepares the Auditor’s Report set out in clause 11.8 below. The first Auditor Report is to be provided within 10 Business Days of the Divestiture Date and thereafter every month until 3 months after the later of the Platform Enhancements Completion Date or the Purchaser Product Completion Date, and every three months thereafter until the expiry of this Undertaking.
- 11.8 The Approved Independent Auditor is to prepare a detailed report (**Auditor’s Report**) on:
- (a) NAB’s compliance with this Undertaking;
 - (b) the progress of DST and the Approved Purchaser in developing the Platform Enhancements and the Purchaser Product Capability;
 - (c) full reasons for the conclusions reached in the audit;
 - (d) any qualifications made by the Approved Independent Auditor in forming his or her views; and
 - (e) any recommendations by the Approved Independent Auditor to improve the integrity of the auditing process and any reasonable recommendations to improve NAB’s compliance with this Undertaking.
- 11.9 NAB must require the Approved Independent Auditor to provide the Auditor’s Report simultaneously to the ACCC and NAB.
- 11.10 NAB must require the Approved Independent Auditor to provide to the ACCC details of any possible failure by NAB to comply with the obligations in this Undertaking immediately upon such a possible failure to comply coming to the attention of the Approved Independent Auditor.
- 11.11 NAB must implement any recommendations of the Approved Independent Auditor made pursuant to and in accordance with clause 11.8(e) and notify the ACCC of the

implementation of the recommendations, within 10 Business Days of receiving the Approved Independent Auditor's Report or after a period agreed on with the ACCC.

- 11.12 NAB must comply with any direction of the ACCC in relation to matters arising from the Auditor's Report within 10 Business Days after being so directed (or such longer period as agreed with the ACCC).

Resignation or termination of the Approved Independent Auditor

- 11.13 NAB must immediately notify the ACCC in the event that an Approved Independent Auditor resigns or otherwise stops acting as an Approved Independent Auditor before the termination of this Undertaking.
- 11.14 The ACCC may approve any proposal by, or alternatively may direct, NAB to terminate an Approved Independent Auditor if in the ACCC's view the Approved Independent Auditor acts inconsistently with the provisions of this Undertaking or the terms of his or her appointment.
- 11.15 If either clauses 11.13 or 11.14 applies, the ACCC may nominate an alternative auditor to be the Approved Independent Auditor.
- 11.16 NAB must, within 5 Business Days of the ACCC nominating an alternative Approved Independent Auditor:
- (a) appoint the Approved Independent Auditor nominated by the ACCC on terms approved by the ACCC and consistent with the performance by the Approved Independent Auditor of his or her functions under this Undertaking; and
 - (b) forward to the ACCC a copy of the executed terms of appointment.

Compliance by NAB with this Undertaking

- 11.17 From the Scheme Implementation Date, NAB must provide the ACCC with a report once every quarter certifying compliance with this Undertaking and detailing the steps NAB has taken to comply with this Undertaking for the duration of this Undertaking.
- 11.18 NAB must notify the ACCC in writing if NAB:
- (a) breaches this Undertaking; or
 - (b) anticipates that it is likely to breach this Undertaking,
- (the **Breach**) as soon as NAB becomes aware of the Breach.
- 11.19 In notifying the ACCC of a Breach pursuant to clause 11.18, NAB must provide details of:
- (a) the Breach;
 - (b) the steps proposed by NAB to remedy the Breach.

12 Information

- 12.1 NAB must respond in a timely manner to any queries or requests for information made by the ACCC about this Undertaking.

- 12.2 The ACCC may direct NAB in respect of its compliance with this Undertaking to, and NAB will:
- (a) furnish information, documents and materials to the ACCC in the time and in the form requested by the ACCC;
 - (b) produce information, documents and materials to the ACCC within its custody, power or control in the time and in the form requested by the ACCC; and/or
 - (c) attend the ACCC at a time and place appointed by the ACCC to answer any questions the ACCC (its Commissioners, its staff or its agents) may have.
- 12.3 In respect to NAB's compliance with this Undertaking, the ACCC may request the Approved Independent Auditor or the Approved Independent Project Manager to:
- (a) furnish information, documents and materials to the ACCC in the time and in the form requested by the ACCC;
 - (b) produce information, documents and materials to the ACCC within the Approved Independent Auditor's or the Approved Independent Project Manager's custody, power or control in the time and in the form requested by the ACCC; and/or
 - (c) attend the ACCC at a time and place appointed by the ACCC to answer any questions the ACCC (its Commissioners, its staff or its agents) may have.
- 12.4 NAB will use its best endeavours to ensure that the Approved Independent Auditor and the Approved Independent Project Manager complies with any request from the ACCC in accordance with this clause 12.
- 12.5 Information given in response to a request or direction under clause 12.1 or information, documents and material furnished or produced in response to the ACCC's direction under clause 12.2 may be used by the ACCC for any purpose consistent with the exercise of its statutory duties.
- 12.6 Any request or direction made by the ACCC under clause 12 will be notified to General Counsel - Corporate of NAB in accordance with clause 18.2.
- 12.7 The ACCC may in its discretion:
- (a) advise the Approved Independent Auditor and/or the Approved Independent Project Manager of any request made by it under this clause 12; and/or
 - (b) provide copies to the Approved Independent Auditor and/or the Approved Independent Project Manager of any information furnished, documents and material produced or information given to it under this clause 12.
- 12.8 A reference to NAB in this clause 12 includes a reference to its Related Bodies Corporate.
- 12.9 Nothing in this clause 12 requires the provision of information in respect of which NAB has a claim of legal professional privilege.

13 Non-solicit of personnel

- 13.1 From the date of this Undertaking until 12 months after the Enhancements Completion Date, NAB must not procure, promote or encourage the transfer from the Approved Purchaser or any of its Related Bodies Corporate, any of the Personnel who have

accepted offers of employment with the Approved Purchaser pursuant to clause 1.1 of Confidential Schedule 6.

14 Obligation to procure

- 14.1 Where the performance of an obligation under this Undertaking requires a Related Body Corporate of NAB to take or refrain from taking some action, NAB will procure that its Related Body Corporate to take or refrain from taking that action, as the case may be.

15 Confidentiality and disclosure

- 15.1 NAB and the ACCC agree that Confidential Schedule 2 clause 1, Confidential Schedules 3 and 4 of this Undertaking will remain confidential until the Divestiture Date.
- 15.2 NAB and the ACCC agree that Confidential Schedule 2 clause 2, Confidential Schedules 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18 and 19 of this Undertaking will remain confidential.
- 15.3 NAB acknowledges that the ACCC may, subject to clauses 15.1 and 15.2:
- (a) make this Undertaking publicly available;
 - (b) publish this Undertaking on its Public Section 87B Undertakings Register; and
 - (c) from time to time publicly refer to this Undertaking.
- 15.4 Nothing in this clause 15 prevents the ACCC from disclosing such information as:
- (a) is required by law;
 - (b) is permitted by s155AAA of the Act;
 - (c) is necessary for the purpose of enforcement action under section 87B of the Act; or
 - (d) is necessary for the purpose of making such market inquiries as the ACCC thinks fit to assess the impact on competition arising in connection with the Undertaking, save that nothing in this clause 15.4(d) shall operate to permit disclosure of any Confidential Schedules, other than as permitted by clause 15.1 above.
- 15.5 Nothing in this clause 15 prevents the ACCC from using the information contained in this Undertaking for any purpose consistent with its statutory functions and powers.

16 No derogation

- 16.1 The Undertaking does not prevent the ACCC from taking enforcement action at any time, whether during or after the period of this Undertaking, in respect of any breach by NAB of any term of the Undertaking.
- 16.2 Nothing in this Undertaking is intended to restrict the right of the ACCC to take action under the Act for penalties or other remedies in the event that NAB does not fully

implement and/or perform its obligations under this Undertaking or in any other event where the ACCC decides to take action under the Act for penalties or other remedies.

17 Costs

- 17.1 NAB must pay all of its own costs incurred in relation to this Undertaking.

18 Notices

- 18.1 Any notice or communication to the ACCC pursuant to this Undertaking must be sent to:

Name:	Australian Competition & Consumer Commission
Address:	23 Marcus Clarke Street, Canberra, ACT, 2601
Fax Number:	(02) 6243 1212
Attention:	Executive General Manager, Mergers and Acquisitions Group

- 18.2 Any notice or communication to NAB pursuant to this Undertaking must be sent to:

Name:	National Australia Bank Limited
Address:	Pier 4, Level 4, (UB 4440) 800 Bourke St, Docklands VIC 3008
Fax Number:	(03) 8634 0893
Attention:	General Counsel – Corporate

with a copy to:

Name:	Freehills
Address:	101 Collins Street, Melbourne, Victoria 3000
Fax Number:	(03) 9288 1567
Attention:	Bob Baxt and Karen Gibbons

- 18.3 If NAB or the ACCC gives the other 3 Business Days notice of a change to its address or fax number, any notice or communication is only given to the relevant entity if it is delivered, posted or faxed to the most recently advised address or fax number.

19 Definitions and interpretation

Definitions

19.1 The meanings of the terms used in this Undertaking are set out below and in Confidential Schedule 2.

Term	Meaning
ACCC	Australian Competition and Consumer Commission.
Act	<i>Trade Practices Act 1974</i> (Cth).
Approved Independent Auditor	has the meaning as referred to in clause 11.4.
Approved Independent Project Manager	has the meaning as referred to in clause 9.5.
Approved Purchaser	[IOOF] and its Related Bodies Corporate, who is the purchaser of the Divestiture Business that has been approved by the ACCC [SUBJECT TO MARKET CONSULTATION AND ACCC APPROVAL]
Approved Sale Escrow Agent	[DLA Phillips Fox] , which has been approved by the ACCC and appointed by NAB, AXA APH, the Approved Purchaser and AXA APH as escrow agent for the sale of the Divestiture Business by AXA APH to the Approved Purchaser.
ATO Ruling	See clause 2 of Confidential Schedule 2.
Auditor's Report	has the meaning as referred to in clause 11.8.
AXA APH	AXA Asia Pacific Holdings Limited, ABN 78 069 123 011, together with its Subsidiaries
AXA APH Financial Advisers	financial planners or advisers that are members of the following dealer groups aligned to AXA APH: (a) AXA Financial Planning Limited; (b) Charter Financial Planning Limited; (c) Genesys Wealth Advisers Limited; (d) ipac Securities Limited; and (e) Tynan Mackenzie Securities Pty Limited.
AXA SA	AXA of 25 avenue Matignon, 75008 Paris, France.
Bluedoor Software	the software product known as "Bluedoor" (formerly known as "Wealth.net") which is licensed to the Approved Purchaser by DST pursuant to the New Bluedoor Agreement (which includes, but is not limited to, the North Configuration), as modified from time to time by or on behalf of the Approved Purchaser (including pursuant to the Statements of Work).
Business Day	a day other than a Saturday or Sunday on which banks are open for business generally in the Australian Capital Territory.
Business Manual IP	all Intellectual Property Rights owned by AXA APH subsisting in the Business Manuals used in conducting the Divestiture Business (excluding any Licensed IP) (such Business Manuals being those described in Confidential Schedule 7), but only to the extent that those Business Manuals relate to the Divestiture Business.
Business Manuals	manuals and other documentation describing policies, procedures and processes.
Business Records	all books of account, accounts, records and data of whatever kind and all other documents, in each case in the possession or control of AXA APH and relating solely or predominantly to the Divestiture Business.

Term	Meaning
Business Sale Agreement	the agreement in respect of the sale and purchase of the Divestiture Business between NWMHL, AXA APH and the Approved Purchaser, dated [XXXX], attached at Confidential Schedule 10.
Commencement Date	the date on which this Undertaking comes into effect under clause 4.1.
Completion Escrow Documents	documents required to be executed by the Approved Purchaser to complete the sale of the Divestiture Business by AXA APH to the Approved Purchaser which will be held in escrow, being each of the following: (a) a duly executed (but undated) transfer deed in respect of the goodwill of the Divestiture Business; (b) one or more duly executed (but undated) deeds of assignment in respect of the Business Manual IP; (c) one or more duly executed licence agreements in respect of the Licensed IP; and (d) one or more duly executed deeds of assignment in respect of the North Trade Marks (and any applications for registration of any North Trade Marks) together with any certificates of registration for them.
Corporations Act	Corporations Act 2001 (Cth).
Divestiture Business	the business described in clause 5.2.
Divestiture Date	the completion of the sale of the Divestiture Business to the Approved Purchaser pursuant to the terms of the AXA Undertaking or this Undertaking.
DST	DST Global Solutions (Bluedoor) Pty Limited (ABN 47 110 855 377).
Effective	means, when used in relation to the Scheme, the coming into effect, pursuant to section 411(10) of the Corporations Act, of the order of the court made under section 411(4)(b) (and, if applicable, section 411(6)) of the Corporations Act) in relation to the Scheme.
Enhancements Completion Date	the later of the Platform Enhancements Completion Date and the Purchaser Product Completion Date.
Existing Bluedoor Agreement	the current Master Licence and Services Agreement between DST and NMCS dated 30 June 2008.
Explanatory Memorandum	The explanatory memorandum to be prepared in respect of the Scheme and to be despatched by AXA APH to AXA APH shareholders in accordance with the Merger Implementation Deed.
Framework Deed	the deed of that name between AXA APH, NAB and AXA SA dated 30 March 2010.
FUA	funds under administration.
Global Terms Sheet	the agreement between DST, NWMHL, AXA APH, NMCS and the Approved Purchaser, dated [XXXX], attached at Confidential Schedule 17.
Intellectual Property Rights	(a) all rights conferred by statute, common law or in equity and subsisting anywhere in the world in relation to: • registered and unregistered copyright; • inventions (including patents, innovation patents and utility models); • confidential information, trade secrets, technical data and Know-how; • registered and unregistered designs; • registered and unregistered trade marks; and (b) circuit layout designs, topography rights and rights in databases; (c) any other rights resulting from intellectual activity in the industrial, commercial, scientific, literary or artistic fields which subsist or may

Term	Meaning
	hereafter subsist; and (d) any applications and the right to apply for registration of any of the above, but excluding moral rights, and similar personal rights, which by law are non-assignable.
Know-how	Information, know-how and techniques (whether or not confidential and in whatever form held) including: (a) formulae, discoveries, design specifications, drawings, data, manuals and instructions; (b) customer lists, sales marketing and promotional information; (c) business plans and forecasts; and (d) technical and other expertise.
Licensed IP	(a) the Product Rules IP; (b) all Intellectual Property Rights owned by AXA APH subsisting in the North Disclosure Documents as described in Confidential Schedule 8; and (c) all Intellectual Property Rights owned by AXA APH subsisting in any Business Manuals relating to the North Products and which do not relate solely to the Divestiture Business as described in Confidential Schedule 8, as those things exist as at Divestiture Date, and, for the avoidance of doubt, excludes any Intellectual Property Rights subsisting in items (a) to (c) above to the extent that they relate to the hedging services provided to AXA APH by AXA Hedging Services.
Merger Implementation Deed	the deed of that name between AXA APH and NAB dated 30 March 2010.
NAB	National Australia Bank Limited, ABN 12 004 044 937, together with its Subsidiaries including NWMHL. For the avoidance of doubt, NAB includes AXA APH together with its Subsidiaries from the Scheme Implementation Date (excluding AXA APH's Asian Subsidiaries and NMI).
New Bluedoor Agreement	the agreement attached as Confidential Schedule 16 between the Approved Purchaser and DST dated [XXXXX].
NMCS	NM Computer Services Pty Ltd (ABN 44 001 239 667), a related entity of AXA APH.
NMI	National Mutual International Pty Limited (ABN 13 004 484 351).
NMMT	NMMT Limited (ABN 42 058 835 573), a related entity of AXA APH.
North Configuration	the parameters, settings and other configurations relating to, and modifications to and enhancements of, the software product known as "Bluedoor" (formerly known as "Wealth.net") which are licensed to NMCS by DST under the Existing Bluedoor Agreement, or which have been or will be developed by or on behalf of AXA APH prior to the Divestiture Date (including those that have been or will be supplied to NMCS by DST prior to the Divestiture Date).
North Disclosure Documents	- the product disclosure statements relating to the Wealth Fund and the North Guarantees; and - the North IDPS guide, both as at the Divestiture Date.
North Guarantee Deed Poll	the deed poll of that name made by National Mutual Funds Management Limited dated 24 October 2008, as modified or replaced from time to time.
North Guarantees	the North Super and Pension Guarantees and the North Investment Guarantees.
North IDPS	the investor directed portfolio service presently known as the "North IDPS" established under the North IDPS Deed Poll made by NMMT Limited dated

Term	Meaning
	18 April 2008, as modified or replaced from time to time.
North Investment Guarantees	the “Protected Investment “ and “Protected Growth” guarantees offered to North IDPS investors by National Mutual Funds Management Limited under the North Guarantee Deed Poll as set out in the relevant North Disclosure Documents, as supplemented, modified or replaced from time to time.
North Products	• interests in the Wealth Fund (including North Super and Pension Guarantees) issued by N.M. Superannuation Proprietary Limited; • the North IDPS operated by NMMT Limited; and • the North Guarantees issued by National Mutual Funds Management Limited, excluding, for the avoidance of doubt, each of the accessible financial products which comprise the menu of investment options made available to Wealth Fund members and North IDPS investors, as set out in the "North Investment Options" disclosure document issued by N.M. Superannuation Proprietary Limited and NMMT Limited, as supplemented, modified or replaced from time to time.
North Products Exclusivity Arrangement	the exclusivity arrangement discussed in clause 7.
North Super and Pension Guarantees	the “Protected Investment”, “Protected Growth” and “Protected Retirement” guarantee options offered to Wealth Fund members by N.M. Superannuation Proprietary Limited as set out in the relevant North Disclosure Documents, as supplemented, modified or replaced from time to time.
North Trade Marks	those trademarks identified in Confidential Schedule 9.
Personnel	all employees and contractors necessary for the operation of the Divestiture Business, as identified in Confidential Schedule 6, and any other person not identified in Confidential Schedule 6 who is hired by AXA APH solely in relation to the Divestiture Business after the date of this Undertaking in the ordinary course of business or as required by law who will each receive an offer of employment from the Approved Purchaser.
Platform Administration Services	the services described in clause 1 of Schedule 1, as amended by the parties to the Platform Administration Services Agreement from time to time.
Platform Administration Services Agreement	the agreement attached at Confidential Schedule 13 between the Approved Purchaser, NWMHL and NMMT dated [XXXX] under which NMMT agrees to acquire Platform Administration Services from the Approved Purchaser in relation to the North Products as provided for in clause 3 of this Undertaking and clause 1 of Schedule 1 of this Undertaking.
Platform Administration Term	the period from the Divestiture Date until three years after the Purchaser Product Completion Date unless the Platform Administration Services Agreement is terminated earlier by the Approved Purchaser, or is terminated earlier by NAB, AXA APH or their Related Bodies Corporate with the ACCC’s consent pursuant to clause 6.3 of this Undertaking.
Platform Enhancements	the enhancements to the Bluedoor Software described in Confidential Schedule 11.
Platform Enhancements Completion Date	the date upon which the Approved Independent Project Manager notifies the ACCC that the Platform Enhancements have been completed by DST in accordance with clause 9.6 of this Undertaking.
Platform Enhancements Delivery Date	the date that is 39 weeks after the date of this Undertaking, unless extended in accordance with this Undertaking.
Platform Enhancements SOW	the statement of work entered into initially by DST and NMCS in accordance with the Global Terms Sheet, and the benefit of which is transferred from NMCS to the Approved Purchaser in accordance with the Transfer Deed, pursuant to which DST agrees to develop the Platform Enhancements as provided in Confidential Schedule 11.

Term	Meaning
Product Rules IP	all Intellectual Property Rights owned by AXA APH in business processes and operational rules relating to the North Products, defining the specific product-related rules necessary for the Bluedoor Software (to the extent the Bluedoor software was licensed to NMCS under the Existing Bluedoor Agreement) to administer the North Product offerings.
Proposed Acquisition	has the meaning given in clause 2.1.
Purchaser Product Capability	enhancements to the Bluedoor Software which provide it with the capability to administer a superannuation product issued by, and an investor directed portfolio service operated by, and an allocated pension product issued by a Related Body Corporate of the Approved Purchaser, in addition to the capability to administer the North Products, which enhancements are more particularly described in Confidential Schedule 12.
Purchaser Product Capability SOW	the statement of work entered into initially by DST and NMCS in accordance with the Global Terms Sheet, and the benefit of which is transferred from NMCS to the Approved Purchaser in accordance with the Transfer Deed, pursuant to which DST agrees to develop enhancements to the Bluedoor Software to provide the Purchaser Product Capability as provided in Confidential Schedule 12.
Purchaser Product Completion Date	the date upon which the Approved Independent Project Manager notifies the ACCC that the Purchaser Product Capability has been completed in accordance with clause 9.6 of this Undertaking.
Purchaser Product Delivery Date	the date that is 39 weeks after the date of this Undertaking, unless extended in accordance with this Undertaking.
Related Body Corporate	has the meaning given to that phrase by section 9 of the Corporations Act 2001.
Requirements Documentation	the requirements specifications contemplated by the respective Statements of Work, to be put in place by DST with AXA APH or the Approved Purchaser as appropriate;
Scheme	the scheme of arrangement discussed in clause 2.2.
Scheme Effective Date	the date on which the Scheme becomes Effective pursuant to section 411(10) of the Corporations Act.
Scheme Implementation Date	the date on which completion of the acquisition by NWMHL of legal and beneficial ownership of 100% of the issued share capital of AXA APH pursuant to the Scheme and a share sale deed between AXA and NAB dated 30 March 2010.
Service Provider	the provider of Transitional Services to the Approved Purchaser, being AXA APH (before the Scheme Implementation Date) and NWMHL (after the Scheme Implementation Date)
Software Escrow Agreement	the agreement attached as Confidential Schedule 19 between the Approved Purchaser, DST and the relevant software escrow service provider dated [XXXX].
Statements of Work	the Purchaser Product Capability SOW and the Platform Enhancements SOW.
Subsidiary	has the meaning given to that term in the Corporations Act, provided that an entity will also be deemed to be a Subsidiary of a body corporate if it is controlled (within the meaning of that term provided by Pt 1.2, Div 6 of the Corporations Act) by that body corporate.
Transfer Deed	the deed of that name between NMCS, DST and the Approved Purchaser dated [XXXX] under which the transfer of the Statements of Work is effected.
Transitional Services	the services described in clause 2 of Schedule 1.
Transitional Services Agreement	the agreement attached as Confidential Schedule 14 between the Approved Purchaser, AXA APH and NWMHL dated [XXXX] under which NWMHL and AXA APH agree to provide Transitional Services to the Approved Purchaser.

Term	Meaning
Undertaking	is a reference to all provisions of this document, including its Schedules.
Wealth Fund	means the North Personal Superannuation Plan and the North Personal Pension Plan in the Wealth Personal Superannuation and Pension Fund (ABN 92 381 911 598) established and operated under a trust deed dated 11 September 2007, as modified or replaced from time to time, excluding for the avoidance of doubt, the Summit Personal Superannuation Plan, the Summit Personal Pension Plan, the Limon Plan, the Remcon Plan, the ipac iAccess - Portfolio Planning Solutions Personal Superannuation Plan, the ipac iAccess - Portfolio Planning Solutions Allocated Pension Plan, the ipac iAccess Strategic Service Personal Superannuation Plan, ipac iAccess Strategic Service Allocated Pension Plan, the Generations Personal Superannuation Plan, the Generations Personal Pension Plan and the iAccess Personal Superannuation Plan in the Wealth Personal Superannuation and Pension Fund.

Interpretation

19.2 In the interpretation of this Undertaking, the following provisions apply unless the context otherwise requires:

- (a) Headings are inserted for convenience only and do not affect the interpretation of this Undertaking.
- (b) If the day on which any act, matter or thing is to be done under this Undertaking is not a Business Day, the act, matter or thing must be done on the next Business Day.
- (c) A reference in this Undertaking to any law, legislation or legislative provision includes any statutory modification, amendment or re-enactment, and any subordinate legislation or regulations issued under that legislation or legislative provision.
- (d) A reference in this Undertaking to any company includes its Related Bodies Corporate.
- (e) A reference in this Undertaking to any agreement or document is to that agreement or document as amended, novated, supplemented or replaced.
- (f) A reference to a clause, part, schedule or attachment is a reference to a clause, part, schedule or attachment of or to this Undertaking.
- (g) An expression importing a natural person includes any company, trust, partnership, joint venture, association, body corporate or governmental agency.
- (h) Where a word or phrase is given a defined meaning, another part of speech or other grammatical form in respect of that word or phrase has a corresponding meaning.
- (i) A word which denotes the singular also denotes the plural, a word which denotes the plural also denotes the singular, and a reference to any gender also denotes the other genders.
- (j) A reference to the word 'include' or 'including' is to be construed without limitation.
- (k) A construction that would promote the purpose or object underlying the Undertaking (whether expressly stated or not) shall be preferred to a construction that would not promote that purpose or object.

- (l) Material not forming part of this Undertaking may be considered to:
 - (i) confirm the meaning of a clause is the ordinary meaning conveyed by the text of the clause, taking into account its context in the Undertaking and the competition concerns intended to be addressed by the Undertaking and the clause in question; or
 - (ii) determine the meaning of the clause when the ordinary meaning conveyed by the text of the clause, taking into account its context in the Undertaking and the purpose or object underlying the Undertaking, leads to a result that does not promote the purpose or object underlying the Undertaking.
- (m) In determining whether consideration should be given to any material in accordance with clause 19.2(l) , or in considering any weight to be given to any such material, regard shall be had, in addition to any other relevant matters, to:
 - (i) the effect that reliance on the ordinary meaning conveyed by the text of the clause would have (taking into account its context in the Undertaking and whether that meaning promotes the purpose or object of the Undertaking); and
 - (ii) the need to ensure that the result of the Undertaking is to completely address any ACCC competition concerns.
- (n) The ACCC may authorise the Mergers Review Committee, a member of the ACCC or a member of the ACCC staff, to exercise a decision making function under this Undertaking on its behalf and that authorisation may be subject to any conditions which the ACCC may impose.
- (o) In performing its obligations under this Undertaking, NAB will do everything reasonably within its power to ensure that its performance of those obligations is done in a manner which is consistent with promoting the purpose and object of this Undertaking.

Executed by National Australia Bank Limited, ABN 12 004 004 937 in accordance with s 127
of the Corporations Act by or in the presence of
by:

Signature of Director

Signature of Director/Secretary

Name of Director (please print)

Name of Director/Secretary (please print)

Date:

Accepted by the Australian Competition & Consumer Commission pursuant to section 87B
of the Trade Practices Act 1974

Graeme Julian Samuel
Chairman
Date:

Schedule 1

Services to be acquired from or provided to the Approved Purchaser

1 Platform administration services

The platform administration services to be acquired by NMMT (for itself and on behalf of the other relevant AXA APH product issuers) from the Approved Purchaser are the (product and fund) services that were provided by AXA APH in relation to the Wealth Fund, the North IDPS and the North Guarantees through the Divestiture Business during the 12 month period prior the commencement of the Platform Administration Services Agreement, including, but not limited to the types of services outlined below:

- ensuring the availability of the North investment platform based on the Bluedoor Software operated by the Approved Purchaser;
- maintaining records and record keeping relating to members, advisers and transactions;
- processing of member transactions;
- benefit and redemption processing;
- providing member and adviser access to the North investment platform based on the Bluedoor Software operated by the Approved Purchaser;
- providing a service centre for the purpose of dealing with member and adviser queries;
- dealing with member enquiries and complaints;
- loading disclosure and other documents relating to the Wealth Fund, the North IDPS and the North Guarantees on the website used by the Approved Purchaser as the online member and adviser interface to the North investment platform based on the Bluedoor Software operated by the Approved Purchaser (**Website**);
- updating and making required changes to the North investment platform based on the Bluedoor Software operated by the Approved Purchaser;
- maintaining platform administration manuals;
- providing maintenance services to the North investment platform based on the Bluedoor Software operated by the Approved Purchaser, including the Website;
- providing periodic reports in relation to the North Products;
- providing all information necessary for the returns and accounts of the relevant AXA APH product issuers and other requested information and reports;
- providing regular service standard reports; and
- other agreed administration services.

2 Transitional services

At the option of the Approved Purchaser, the transitional services to be provided by the Service Provider, being AXA APH (before the Scheme Implementation Date) and NWMHL (after the Scheme Implementation Date) to the Approved Purchaser are as follows:

- hosting of the Bluedoor Software on the computer hardware on which that software (to the extent it was licensed to NMCS under the Existing Bluedoor Agreement prior to the Divestiture Date) was installed prior to the date of the Transitional Services Agreement (**Host Systems**), including the following services (each to the extent performed by AXA APH in relation to those systems during the 12 month period prior to the Divestiture Date):
 - provision of infrastructure and security in relation to the North applications;
 - application and interface support;
 - disaster recovery and support; and
 - business continuity planning, testing and support;
- provision of telephone hardware, call recording and storage of recorded calls in connection with the Divestiture Business (as necessary to perform the Platform Administration Services), and to the extent provided by AXA APH in relation to the Divestiture Business during the 12 month period prior to the date of the Transitional Services Agreement;
- transfer of AXA APH's contractual entitlements with third parties to the Approved Purchaser, to the extent relating solely to provision of telephone lines and routing of calls relating to the Divestiture Business;
- provision of access to the data network between the leased premises and the Host Systems to facilitate access to the Bluedoor Software;
- provision of volume forecasting in relation to the number of members and advisers using the North platform, to the extent provided by AXA APH in relation to the Divestiture Business during the 12 month period prior to the date of the Transitional Services Agreement;
- training services in relation to the North Products and any changes to those products from time to time;
- the following services, each to the extent performed by AXA APH for the Divestiture Business during the 12 month period prior to the Divestiture Date, and based on transactions recorded in data provided by the Approved Purchaser under the Platform Administration Services Agreement:
 - daily bank reconciliations for accounts relating to North Products and cash accounts of Wealth Fund members and North IDPS investors;
 - distribution of interest to cash accounts of Wealth Fund members and North IDPS investors based on calculations provided in data provided by the Approved Purchaser under the Platform Administration Services Agreement;
 - payment of properly authorised fees, levies and expenses (including insurance premiums) in relation to the Wealth Fund, the North IDPS and the North Guarantees on behalf of the Approved Purchaser;
 - month end account reconciliations (including suspense account, benefit payment account and compensation account);
 - investigation and rectification in AXA APH records of investment option trade exceptions;

- investigation and rectification in AXA APH records of investment option unit price exceptions;
- investigation and rectification in AXA APH records of income processing and tax component exceptions;
- the following services, each to the extent performed by AXA APH for the Divestiture Business during the 12 month period prior to the Divestiture Date:
 - payroll services for Personnel who have accepted offers of employment with the Approved Purchaser;
 - support and maintenance of interface between the Bluedoor net Software and AXA APH's general ledger software; and
 - production of cheques for payments to members of and investors in the North Products based on data provided by the Approved Purchaser under to the Platform Administration Services Agreement; and
- services other than the services described above, agreed by the Service Provider and the Approved Purchaser as projects (and governed by agreed project plans), or under a separation plan providing for the transition of hosting services (as described above) to the Approved Purchaser's IT environment.

Confidential Schedule 2

Confidential Schedule 3

Confidential Schedule 4

Confidential Schedule 5

Confidential Schedule 6

Confidential Schedule 7

Confidential Schedule 8

Confidential Schedule 9

Confidential Schedule 10

Confidential Schedule 11

Confidential Schedule 12

Confidential Schedule 13

Confidential Schedule 14

Confidential Schedule 15

Confidential Schedule 16

Confidential Schedule 17

Confidential Schedule 18

Confidential Schedule 19

1 Factors relevant to the termination of the Platform Administration Services Agreement

In submitting a request for the ACCC's consent to termination of the Platform Administration Services Agreement under clause 6.4, the following factors are identified as some of the relevant considerations in relation to which NAB may provide information to the ACCC, and that the ACCC may have regard to (without limitation) in considering, in its sole and unfettered discretion, whether to provide its written consent:

1.1 Where the board of NMMT (whether acting in its own capacity or as an agent as set out at Recital G of the Platform Administration Services Agreement) has decided (and communicated that decision along with reasons for that decision to the ACCC in writing) that a failure to terminate the Platform Administration Services Agreement would be likely to lead to:

(a) a breach of any applicable law, regulation or regulatory requirement applying to:

(i) NM Superannuation Proprietary Limited or National Mutual Funds Management Limited or their successors as issuers of interests in the Wealth Fund and the North Guarantees respectively;

(ii) NMMT or its successors as operator of the North IDPS; or

(iii) the Approved Purchaser or its successors as administrator of the Wealth Fund, the North IDPS and the North Guarantees under the Platform Administration Services Agreement,

including for the avoidance of doubt, the duties imposed on the directors of any party referred to in (i), (ii) or (iii) in that capacity;

(b) a breach of the licence conditions of the relevant Australian Financial Services Licence or the relevant Registrable Superannuation Entity Licence (or a similar licence, approval or authorisation issued by a regulator);

(c) a breach of prudential obligations, including enforceable requirements and prudential standards imposed by the Australian Prudential Regulation Authority; or

(d) a breach of any fiduciary duty or obligations of trustees;

2 Factors relevant to the removal of North Products from approved product lists

In providing written reasons in support of a request for the ACCC's consent to a removal of the North Products from the approved product lists of one or more AXA APH Financial Advisers under clause 7.1(c)(ii), the following factors are identified as some of the relevant considerations in relation to which NAB may provide information to ACCC, and that the ACCC may have regard to (without limitation) in considering whether to provide its written consent:

2.1 Where the independent directors on the applicable product committee have decided (and communicated that decision to the ACCC in writing) that a failure to remove the relevant product from the approved product list would be likely to lead to:

- (a) a breach of any applicable law, regulation or regulatory requirement relating to the distribution of the North Products;
- (b) a breach of the licence terms of the relevant Australian Financial Services Licence (or a similar licence, approval or authorisation issued by a regulator);
- (c) a breach of prudential obligations, including enforceable requirements and prudential standards imposed by the Australian Prudential Regulation Authority;
or
- (d) a breach of any fiduciary duty or obligations of trustees.

Sale of the Divestiture Business

1.1 The exclusions are as follows:

- (a) the New Bluedoor Agreement;
- (b) the following services:
 - (i) carriage services (within the meaning given to that term by the *Telecommunications Act 1997* (Cth)) (other than any telecommunications service expressly included in the Transitional Services);
 - (ii) any services which the separation plan referred to in clause 2 of Schedule 1 states it is the responsibility of the Approved Purchaser to acquire;
 - (iii) premises maintenance services;
 - (iv) utilities services (including water, electricity and gas services);
 - (v) product development, product management and marketing services and advice;
 - (vi) operational and regulatory risk management services and advice;
 - (vii) legal and compliance services and advice;
 - (viii) accounting, audit, actuarial and tax services and advice;
 - (ix) custody, investment advisory and investment management services and advice;
 - (x) adviser relationship management services and advice; and
 - (xi) the provision of any services which a person conducting a business in the nature of that conducted by the Approved Purchaser would in the ordinary course of conducting that business reasonably be expected to perform for itself or acquire from third parties, and which do not relate specifically to the provision of the Platform Administration Services; and
- (c) each contract between AXA APH and a third party which is relevant to the services and technical resources to be provided or made available to the Approved Purchaser under the Transitional Services Agreement.

1.2 The exclusions are as follows:

- (a) the matters referred to in clause 1.1(b) of this Schedule; and
- (b) the services and technical resources to be provided or made available to the Approved Purchaser under the Transitional Services Agreement.